

CALDOVA PHARMACEUTICALS, INC.

CONTRACT MANUFACTURING & SUPPLY AGREEMENT

between

Caldova Pharmaceuticals, Inc.

and

Contoso Pharmaceuticals

Contract No. CMO-CP-2027-105

Effective Date: 19 January 2026

Term: 24 Months

Status: EXECUTED AGREEMENT

CONFIDENTIAL

Document Classification: Confidential | Version: 1.0 | Status: Executed Agreement

Agreement Summary

This summary is provided for convenience only and does not override the operative clauses or Schedules of this Agreement.

Field	Details
Buyer	Caldova Pharmaceuticals, Inc.
Supplier	Contoso Pharmaceuticals
Agreement Type	Contract Manufacturing & Supply
Contract No.	CMO-CP-2027-105
Effective Date	19 January 2026
Expiration Date	18 January 2028
Term	24 months
Primary Delivery Location	Central Plant, Columbus, Ohio, USA
Incoterm	CIP — Incoterms® 2020
Currency	USD
Standard Lead Time	30 calendar days
Payment	15% advance + Net 30
Late-Delivery Credit	1.0% per week (max 7%)
Insurance	\$5,000,000.00 per occurrence
Governing Law	State of Delaware, USA

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THIS CONTRACT MANUFACTURING & SUPPLY AGREEMENT is made on 19 January 2026 between Caldova Pharmaceuticals, Inc. (“Buyer” or “Caldova”), and Contoso Pharmaceuticals (“Supplier”), each a “Party” and together the “Parties”.

BACKGROUND: Caldova has launched a chronic inflammatory disease therapy and requires qualified contract manufacture and supply of the materials listed in Schedule A. Supplier is a qualified supplier under Caldova's CMO Qualification and Supplier Evaluation procedures. The Parties agree as follows.

1. Definitions and Interpretation

- 1.1 “Affiliate” means any entity that controls, is controlled by, or is under common control with a Party.
- 1.2 “Applicable Laws” means all laws, regulations, guidelines and regulatory requirements applicable to the manufacture, supply, testing, storage and delivery of the Goods, including current Good Manufacturing Practice (cGMP).
- 1.3 “Business Day” means any day other than a Saturday, Sunday or public holiday in the State of Delaware, United States.
- 1.4 “Change Order” means a written instruction issued under the Change Control procedure in Section 15 that modifies the Specifications, process, or Schedules.
- 1.5 “Confidential Information” means all non-public information disclosed by or on behalf of a Party, in any form, that is designated confidential or would reasonably be understood to be confidential.
- 1.6 “Delivery Date” means the date on which Goods are required to be delivered to the Delivery Location as stated on the applicable accepted Purchase Order.
- 1.7 “Delivery Location” means Caldova's Central Plant, Columbus, Ohio, USA, or such other location as the Parties agree in writing.
- 1.8 “Finished Product” means Goods that have completed all manufacturing, testing and release activities required under this Agreement.
- 1.9 “Forecast” means the non-binding rolling forecast of anticipated requirements provided by Buyer under Section 4.
- 1.10 “Force Majeure Event” means an event described in Section 27 that is beyond the reasonable control of the affected Party.
- 1.11 “Goods” means the materials and products listed in Schedule A that Supplier is approved to manufacture and supply under this Agreement.
- 1.12 “GMP” means current Good Manufacturing Practice as required by Applicable Laws and the Quality Agreement.
- 1.13 “Non-Conforming Product” means Goods that do not conform to the Specifications, the Quality Agreement, or Applicable Laws.
- 1.14 “Purchase Order” means a written order issued by Buyer for Goods that, once accepted by Supplier, forms a binding commitment under this Agreement.
- 1.15 “Quality Agreement” means the separate quality agreement between the Parties described in Schedule D that governs GMP roles and responsibilities.
- 1.16 “Recall” means any action to recover, correct or remove Goods from the market or the field, whether voluntary or mandated by a regulatory authority.

1.17 “Specifications” means the approved specifications for each Good set out or referenced in Schedule A, as amended through Change Control.

1.18 “Supplier Materials” means raw materials, components, packaging and labelling used by Supplier to manufacture the Goods.

1.19 Interpretation. Headings are for convenience only. References to Sections and Schedules are to this Agreement. The words “including” and “includes” are without limitation. The Schedules form part of this Agreement.

2. Scope of Agreement

2.1 This Agreement sets out the terms on which Supplier will manufacture and supply, and Buyer will purchase, the Goods listed in Schedule A for use by Buyer in connection with its pharmaceutical operations, including its chronic inflammatory disease therapy programme.

2.2 This Agreement governs the overall relationship of the Parties. Individual transactions are effected through Purchase Orders issued and accepted under Section 4. In the event of conflict, the operative clauses of this Agreement prevail over any Purchase Order terms.

2.3 Nothing in this Agreement obliges Buyer to purchase any minimum volume except to the extent expressly committed in an accepted Purchase Order or the committed Forecast period under Section 4.

3. Appointment of Supplier

3.1 Buyer appoints Supplier as a qualified, non-exclusive supplier of the Goods, and Supplier accepts such appointment, on the terms of this Agreement.

3.2 Supplier's qualification is subject to Buyer's CMO Qualification and Supplier Evaluation procedures and to Supplier maintaining the approvals, licences and quality systems required by Applicable Laws throughout the Term.

3.3 The appointment is non-exclusive. Buyer may qualify and purchase from other suppliers at its discretion.

4. Forecasts and Purchase Orders

4.1 Rolling Forecast. Buyer will provide Supplier with a rolling six (6) month Forecast of anticipated requirements, updated monthly. The first sixty (60) days of each Forecast are binding; the remainder is a good-faith estimate only and non-binding.

4.2 Purchase Orders. Buyer will issue Purchase Orders specifying the Goods, quantities, unit prices determined under Section 11, requested Delivery Dates and Delivery Location.

4.3 Order Acceptance. Supplier will accept or reject each Purchase Order in writing within three (3) Business Days of receipt. A Purchase Order not rejected within that period is deemed accepted. Supplier may reject a Purchase Order only if it materially deviates from this Agreement.

4.4 Minimum Order Quantities. Minimum order quantities per SKU, where applicable, are set out in Schedule F.

4.5 Cancellation. Buyer may cancel or reschedule an accepted Purchase Order by written notice; Buyer will reimburse Supplier's reasonable, documented, non-cancellable costs incurred prior to cancellation, subject to Supplier's duty to mitigate.

4.6 Expedite Requests. Buyer may request expedited production. Any expedite is subject to Supplier's written acceptance and to the authorized fees, if any, set out in Schedule C. No expedite, handling or priority charge is payable unless it appears in Schedule C.

5. Manufacturing and Supply Obligations

5.1 Manufacturing Standards. Supplier will manufacture the Goods in accordance with the Specifications, the Quality Agreement, GMP and all Applicable Laws.

5.2 Manufacturing Capacity. Supplier will maintain sufficient qualified capacity, materials and personnel to meet accepted Purchase Orders and the binding Forecast period.

5.3 Personnel and Facilities. Supplier will use appropriately trained personnel and qualified, GMP-compliant facilities, and will not relocate manufacture of any Good to a different site without Buyer's prior written approval and any required requalification.

5.4 Subcontracting. Supplier will not subcontract or outsource any manufacturing, testing or packaging of the Goods without Buyer's prior written consent. Supplier remains responsible for the acts and omissions of any approved subcontractor.

5.5 Supplier Materials. Supplier is responsible for procuring, qualifying and testing Supplier Materials, and for maintaining approved-vendor status for critical materials, unless otherwise agreed in the Quality Agreement.

5.6 Batch Documentation. Supplier will maintain and provide executed batch records, a Certificate of Analysis and a Certificate of Conformance, and other release documentation required by the Quality Agreement, for each batch of Goods supplied.

6. Specifications and Quality Requirements

6.1 Specifications. Each Good must conform to the Specifications identified in Schedule A. Specifications may be amended only through Change Control under Section 15.

6.2 Quality Agreement. The Parties will maintain the Quality Agreement described in Schedule D, which allocates GMP responsibilities. In the event of conflict on quality matters, the Quality Agreement governs; on commercial matters, this Agreement governs.

6.3 GMP Compliance. Supplier will manufacture, test, store and release the Goods in compliance with GMP and will hold all licences and approvals required to do so.

6.4 Quality Control Testing. Supplier will perform the quality control testing set out in the Specifications and the Quality Agreement and will retain testing records.

6.5 Certificate of Analysis. Supplier will issue a Certificate of Analysis for each batch confirming conformance to the Specifications prior to or with delivery.

6.6 Batch Release. Supplier's qualified person or designated releasing authority will release each batch in accordance with the Quality Agreement before shipment.

6.7 Stability and Retention Samples. Supplier will maintain stability programmes and retain representative retention samples for each batch for the period required by the Quality Agreement or Applicable Laws.

7. Regulatory Compliance and GMP

7.1 Each Party will comply with all Applicable Laws in performing its obligations.

7.2 Supplier will maintain the regulatory registrations, site licences and GMP certifications necessary to manufacture and supply the Goods, and will notify Buyer promptly of any material regulatory action, inspection observation or licence change affecting the Goods.

7.3 Supplier will permit Buyer to reference Supplier's facility and quality data as reasonably required to support Buyer's regulatory filings, and will provide reasonable regulatory support.

7.4 Supplier will notify Buyer within two (2) Business Days of any regulatory authority inspection that relates to the Goods and will share relevant findings.

8. Quality Assurance and Quality Control

8.1 Supplier will operate a documented quality management system consistent with GMP.

8.2 Supplier will not make any change to the Specifications, materials, process, site or testing methods for the Goods except through Change Control under Section 15.

8.3 Buyer's acceptance of Goods, payment, or use does not waive Buyer's rights in respect of Non-Conforming Product or latent defects.

9. Inspection, Acceptance and Rejection

9.1 Incoming Inspection. Buyer may inspect and test Goods on receipt. Buyer will give notice of any visibly Non-Conforming Product within ten (10) Business Days of receipt, and of latent non-conformance within thirty (30) days of discovery.

9.2 Rejection. Buyer may reject Non-Conforming Product. Rejected Goods will be held, returned or destroyed as the Parties agree under Section 16, at Supplier's cost where Supplier is responsible.

9.3 Replacement. Supplier will, at Buyer's election, replace Non-Conforming Product at no additional charge or issue a credit, without prejudice to Buyer's other remedies.

9.4 Dispute of Rejection. If Supplier disputes a rejection, the Parties will submit representative samples to a mutually agreed independent laboratory, whose determination is final; the losing Party bears the testing cost.

10. Delivery, Shipping and Risk of Loss

10.1 Incoterms. Deliveries are made CIP (Incoterms® 2020) to the Delivery Location.

10.2 Standard lead time is thirty (30) calendar days from the date of an accepted Purchase Order, unless otherwise agreed. Delivery windows and lead times are set out in Schedule E.

10.3 Shipping Documentation. Each shipment must include a packing list, the Certificate of Analysis, the Certificate of Conformance, lot/batch identification, quantity, Purchase Order number and this Agreement number.

10.4 Packaging and Palletization. Goods must be packaged, labelled and palletized in accordance with the Specifications and the Quality Agreement to protect the Goods in transit.

10.5 Temperature and Handling. Where the Specifications require controlled conditions, Supplier will ship under the required temperature controls and include monitoring documentation.

10.6 Title and Risk. Title and risk of loss pass in accordance with the applicable Incoterm, except that Supplier retains responsibility for non-conformance existing at the time risk passes.

10.7 Partial and Split Shipments. Partial or split shipments require Buyer's prior written consent. Proof of delivery will be provided for each shipment.

11. Pricing and Volume Discounts

11.1 Base Pricing. Unit prices for the Goods are the list prices set out in Schedule B.

11.2 Volume Discount Tiers. Unit price is determined by the ordered quantity per Good per shipment in accordance with the volume price-break table in Schedule B. The applicable tier is determined by the quantity actually ordered on the relevant Purchase Order.

11.3 Price Determination. The correct unit price for any line is the tier price in Schedule B corresponding to the ordered quantity. Any charge in excess of the applicable tier price is not payable and is subject to Section 12.9 (Unauthorized Charges).

11.4 Annual Price Review. The Parties may review pricing annually. Any change takes effect only through a signed amendment under Section 39 and does not apply retroactively to accepted Purchase Orders.

11.5 Raw Material Adjustments. Documented, material changes in Supplier Materials costs may be discussed in good faith but do not change pricing unless agreed in a signed amendment.

11.6 Currency. All prices and payments are in United States Dollars (USD).

12. Taxes and Authorized Fees

12.1 Prices are exclusive of applicable taxes. Where a cross-border supply is subject to reverse-charge VAT/GST, Buyer will account for such tax and Supplier will not invoice it.

12.2 Authorized Fees. The only ancillary fees Supplier may invoice are those expressly listed in Schedule C, charged on the stated basis.

12.3 Unauthorized Charges. Supplier will not invoice, and Buyer is not liable for, any surcharge, handling, expediting, priority, cold-chain or other fee that is not listed in Schedule C. Any such charge is void and recoverable by Buyer if paid in error.

12.4 Duties and Freight. Responsibility for duties and freight follows the applicable Incoterm in Section 10.

13. Invoicing and Payment Terms

13.1 Advance Payment. Buyer will pay an advance of 15% of each accepted Purchase Order value on order confirmation.

13.2 Balance. The balance is payable within Net 30 days of the later of the invoice date and Buyer's acceptance of the Goods.

13.3 Invoice Content. Each invoice must reference this Agreement number, the Purchase Order number, the Good, quantity, applicable tier and unit price, and any authorized fee under Schedule C. Invoices not conforming to Schedule B and Schedule C may be disputed under Section 13.5.

13.4 Set-Off. Buyer may set off against any invoice amounts due to Buyer for Non-Conforming Product, credits, or overcharges, including tier overstatements and unauthorized charges.

13.5 Invoice Disputes. Buyer may withhold payment of a disputed amount pending resolution and will pay undisputed amounts when due. A tier overstatement or an unauthorized charge is a permitted basis for dispute.

14. Late Delivery and Service Levels

14.1 A delivery is late if the Goods are not delivered to the Delivery Location by the Delivery Date, other than due to a Force Majeure Event or Buyer delay.

14.2 Late-Delivery Credit. For each full week of delay beyond the Delivery Date, Supplier will credit Buyer 1.0% of the value of the delayed line, up to a maximum of 7% of that line value.

14.3 Notice and Grace. Credits accrue automatically from the Delivery Date; no separate notice is required. Where only one line of a multi-line Purchase Order is delayed, the credit applies to that line only.

14.4 Additional Remedies. The late-delivery credit is without prejudice to Buyer's other remedies. Repeated failure to meet the Delivery Date for three (3) or more shipments in any rolling six (6) month period constitutes a material service-level failure and entitles Buyer to require a corrective action plan and, if unremedied, to terminate under Section 25.

14.5 Force Majeure. A Force Majeure Event suspends, but does not cancel, the affected delivery obligation and the accrual of credits for the duration of the event.

15. Change Control

15.1 No change to the Specifications, materials, manufacturing process, testing methods, manufacturing site or the Schedules is effective unless made through this Change Control procedure and, where commercial terms change, a signed amendment.

15.2 Either Party may propose a Change Order. Supplier will not implement any change that could affect the identity, quality, purity, potency, safety or regulatory status of a Good without Buyer's prior written approval.

15.3 Buyer may require a reasonable evaluation, qualification or regulatory assessment before approving a change. Records of all Change Orders will be maintained under Section 18.

16. Deviations, Non-Conformances and CAPA

16.1 Notification. Supplier will notify Buyer within two (2) Business Days of any deviation, out-of-specification result, or suspected Non-Conforming Product affecting Goods supplied or to be supplied to Buyer.

16.2 Investigation. Supplier will complete an initial investigation within five (5) Business Days and a full root-cause investigation within thirty (30) days, and will share the report with Buyer.

16.3 Disposition. The Parties will agree the disposition of affected Goods (release, rework where permitted, credit, replacement or destruction). Supplier bears the agreed costs where Supplier is responsible.

16.4 CAPA. Where appropriate, Supplier will implement a corrective and preventive action plan within thirty (30) days and provide evidence of effectiveness.

17. Product Complaints and Recalls

17.1 Complaints. The Parties will handle product complaints in accordance with the Quality Agreement, and Supplier will investigate and respond to complaints relating to Supplier's manufacture.

17.2 Safety Information. Each Party will promptly forward any adverse event, safety signal or regulatory notification relevant to the Goods.

17.3 Recall Coordination. Buyer controls any Recall of Buyer's product. Supplier will cooperate fully and provide traceability, batch and distribution information required to conduct a Recall.

17.4 Recall Costs. Where a Recall arises from Supplier's breach, Non-Conforming Product or negligence, Supplier bears the reasonable, documented costs of the Recall; otherwise each Party bears its own costs.

17.5 Traceability. Supplier will maintain lot traceability sufficient to support mock recalls and actual Recalls.

18. Audits and Records

18.1 Audit Rights. Buyer (and, where required, its regulators) may audit Supplier's relevant facilities, systems and records on reasonable prior notice, and for cause without notice following a serious quality event.

18.2 Records. Supplier will maintain manufacturing, quality, testing, shipping and traceability records for the Goods for the period required by the Quality Agreement or Applicable Laws, and in any event not less than the shelf life of the Good plus one (1) year.

18.3 Access. Supplier will provide Buyer reasonable access to such records to verify compliance with this Agreement, including pricing, tier application and fees under Schedules B and C.

19. Insurance and Indemnification

19.1 Insurance. Supplier will maintain, at its cost, all-risk cargo insurance covering Goods in transit and product liability insurance of not less than \$5,000,000.00 per occurrence, naming Buyer as additional insured, throughout the Term and for two (2) years thereafter, and will provide certificates on request.

19.2 Supplier Indemnity. Supplier will indemnify Buyer against third-party claims to the extent arising from Supplier's breach, Non-Conforming Product, negligence, or infringement by Supplier Materials or Supplier's processes.

19.3 Buyer Indemnity. Buyer will indemnify Supplier against third-party claims to the extent arising from Buyer's breach, Buyer's specifications, or Buyer's use, marketing or distribution of the finished product, except to the extent caused by Supplier.

19.4 Procedure. The indemnified Party will give prompt notice, allow the indemnifying Party to control the defence, and cooperate. No settlement imposing liability on a Party may be made without its consent.

20. Confidentiality

20.1 Each Party will keep the other's Confidential Information confidential and use it only to perform this Agreement.

20.2 Permitted Disclosure. A Party may disclose Confidential Information to its Affiliates, employees and advisers on a need-to-know basis under equivalent obligations, and as required by law or a regulator, giving reasonable prior notice where lawful.

20.3 Data Security. Each Party will apply reasonable technical and organizational measures to protect the other's Confidential Information.

20.4 Return or Destruction. On termination, each Party will return or destroy the other's Confidential Information, except one archival copy for compliance and as required by Applicable Laws.

20.5 Survival. Confidentiality obligations survive for five (5) years after termination, and indefinitely for trade secrets.

21. Intellectual Property

21.1 Buyer IP. Buyer retains all right, title and interest in its trademarks, product formulations, Specifications, packaging artwork and related documentation. Supplier obtains no rights therein except the limited licence to manufacture the Goods for Buyer during the Term.

21.2 Supplier IP. Supplier retains its pre-existing know-how and manufacturing processes not specific to Buyer's products.

21.3 Improvements. Any improvement, development or invention that is specific to a Buyer product, Specification or formulation is owned by Buyer. Supplier assigns such rights to Buyer and will execute documents reasonably required to perfect them.

21.4 No Other Rights. Neither Party acquires any right in the other's intellectual property except as expressly granted.

22. Compliance with Laws

22.1 Each Party will comply with all Applicable Laws, including anti-bribery, anti-corruption, trade control, data protection and pharmaceutical regulatory requirements.

22.2 Neither Party will offer or accept any improper payment or inducement in connection with this Agreement. Each Party will maintain accurate books and records.

23. Representations and Warranties

23.1 Mutual. Each Party represents that it is duly organized and authorized to enter this Agreement, that its signatory has authority, and that execution does not violate any other agreement or law binding on it.

23.2 Supplier Warranties. Supplier warrants that the Goods will conform to the Specifications, be manufactured in accordance with GMP and Applicable Laws, be free from material defects in materials and workmanship, be free of undisclosed encumbrances, and that Supplier holds the licences and approvals required to manufacture and supply the Goods.

23.3 Disclaimer. Except as expressly stated, no other warranties, express or implied, are given.

24. Term and Renewal

24.1 Term. This Agreement is effective from 19 January 2026 and continues for 24 months, expiring on 18 January 2028 (the "Initial Term"), unless terminated earlier under Section 25.

24.2 Renewal. The Agreement renews for successive twelve (12) month periods unless either Party gives at least ninety (90) days' written notice of non-renewal before the end of the then-current term.

25. Suspension and Termination

25.1 Termination for Convenience. Either Party may terminate this Agreement for convenience on ninety (90) days' prior written notice.

25.2 Termination for Cause. Either Party may terminate on thirty (30) days' written notice if the other commits a material breach that remains uncured at the end of that period.

25.3 Immediate Termination. Either Party may terminate immediately on written notice if the other becomes insolvent, enters administration or liquidation, makes an arrangement with creditors, or loses a licence or approval necessary to perform.

25.4 Regulatory Termination. Buyer may terminate immediately, in whole or in part, if a regulatory authority takes action that prevents or materially restricts manufacture or supply of a Good, or on a serious GMP failure affecting the Goods.

25.5 Suspension. Buyer may suspend Purchase Orders and deliveries pending resolution of a serious quality, safety or regulatory concern, without liability for the suspension.

26. Consequences of Termination

26.1 Open Purchase Orders. Except on termination for Supplier's cause or a regulatory event, the Parties will complete accepted Purchase Orders outstanding at the effective date of termination on the terms of this Agreement.

26.2 Inventory and Materials. Buyer will pay for conforming Finished Product and, subject to mitigation, for non-cancellable work-in-process and Buyer-specific Supplier Materials properly ordered for accepted Purchase Orders.

26.3 Outstanding Invoices. Termination does not affect payment obligations accrued before termination, subject to Buyer's set-off and dispute rights.

26.4 Records and Property. Each Party will return the other's Confidential Information and property, and Supplier will transfer batch and quality records reasonably required for Buyer's regulatory and traceability obligations.

26.5 Survival. Sections concerning confidentiality, intellectual property, indemnification, limitation of liability, records, governing law and dispute resolution survive termination.

27. Force Majeure

27.1 Neither Party is liable for delay or failure to perform (other than payment obligations) caused by a Force Majeure Event, including acts of God, fire, flood, epidemic or pandemic, war, civil unrest, labour disputes not specific to that Party, failure of utilities, or acts of government.

27.2 The affected Party will give prompt notice, use reasonable efforts to mitigate, and resume performance as soon as practicable.

27.3 If a Force Majeure Event continues for more than sixty (60) consecutive days, the unaffected Party may terminate the affected Purchase Orders or this Agreement on written notice.

28. Limitation of Liability

28.1 Subject to the exclusions below, each Party's aggregate liability arising out of this Agreement in any twelve (12) month period is limited to the total amounts paid or payable under this Agreement in that period.

28.2 Neither Party is liable for indirect, incidental, special, punitive or consequential damages, or for loss of profit, revenue or goodwill.

28.3 The limitations and exclusions do not apply to liability for breach of confidentiality, infringement of intellectual property, indemnification obligations, a Party's gross negligence or wilful misconduct, or liability that cannot be limited under Applicable Laws.

29. Dispute Resolution

29.1 The Parties will attempt in good faith to resolve any dispute through escalation to senior management within thirty (30) days.

29.2 Any dispute not resolved by escalation will be finally settled by binding arbitration under the Commercial Arbitration Rules of the American Arbitration Association, seated in New York, New York, before one or three arbitrators, conducted in English.

29.3 Nothing prevents a Party from seeking urgent injunctive relief from a court of competent jurisdiction to protect its Confidential Information or intellectual property.

30. Governing Law

30.1 This Agreement is governed by, and construed in accordance with, the laws of the State of Delaware, United States, without regard to its conflict-of-laws rules. The United Nations Convention on Contracts for the International Sale of Goods does not apply.

31. Notices

31.1 Notices must be in writing and delivered by hand, internationally recognized courier, or email with confirmation, to the addresses in the Agreement Summary or as later notified.

31.2 Notices are effective on receipt, or on the next Business Day if received after business hours.

32. Assignment

32.1 Neither Party may assign or transfer this Agreement without the other's prior written consent, except that either Party may assign to an Affiliate or to a successor of all or substantially all of its relevant business, subject to the change-of-control provisions.

32.2 Change of Control. A Party will notify the other of any change of control. Where a change of control involves a competitor of the other Party, the other Party may terminate on thirty (30) days' notice.

33. Miscellaneous

33.1 Independent Contractors. The Parties are independent contractors; nothing creates a partnership, joint venture or agency.

33.2 No Third-Party Beneficiaries. This Agreement is for the benefit of the Parties only.

33.3 Waiver. No failure or delay in exercising a right is a waiver of it.

33.4 Severability. If any provision is held invalid, the remainder continues in effect and the Parties will substitute a valid provision of similar effect.

33.5 Entire Agreement. This Agreement, its Schedules and the Quality Agreement constitute the entire agreement and supersede all prior understandings on their subject matter.

33.6 Amendment. Any amendment must be in writing and signed by authorized representatives of both Parties.

33.7 Counterparts and Electronic Signatures. This Agreement may be executed in counterparts and by electronic signature, each of which is an original and together one instrument.

Schedule A — Approved Products and Specifications

Supplier is approved to manufacture and supply only the following Caldova materials (referenced by SKU). No other materials are authorized under this Agreement.

SKU	Product	Form	Pack / UoM	Spec Rev.	Shelf Life	Storage	Status
CAL-RM-0030	Caldova Hydrogen Peroxide 3%	Device / topical	16 fl oz	CAL-RM-0030-SPEC-001	36 months	Controlled room temp (15–25°C)	Approved
CAL-RM-0004	Caldova Daily Care Shampoo	Topical / liquid	20 fl oz	CAL-RM-0004-SPEC-002	36 months	Controlled room temp (15–25°C)	Approved
CAL-RM-0042	Caldova Acetaminophen 500mg	Oral solid / liquid	100 caplets	CAL-RM-0042-SPEC-003	24 months	Controlled room temp (15–25°C)	Approved
CAL-RM-0008	Caldova Whitening Toothpaste	Topical / liquid	4.8 oz	CAL-RM-0008-SPEC-004	36 months	Controlled room temp (15–25°C)	Approved
CAL-RM-0036	Caldova Hydrocortisone Cream 1%	Device / topical	1 oz tube	CAL-RM-0036-SPEC-005	36 months	Controlled room temp (15–25°C)	Approved
CAL-RM-0046	Caldova Saline Nasal Spray	Oral solid / liquid	1.5 fl oz	CAL-RM-0046-SPEC-006	24 months	Controlled room temp (15–25°C)	Approved
CAL-RM-0015	Caldova Vitamin D3 2000 IU	Oral solid / softgel	120 softgels	CAL-RM-0015-SPEC-007	24 months	Controlled room temp (15–25°C)	Approved

Schedule B — Pricing and Volume Discounts

Unit price is determined by the ordered quantity per Good per shipment. The applicable tier price is binding; any charge above the applicable tier price is an unauthorized overcharge under Section 12.3.

SKU	Product	Tier 1	Tier 2	Tier 3
CAL-RM-0030	Caldova Hydrogen Peroxide 3%	1–4,999: \$1.99	5,000–9,999: \$1.59	10,000+: \$1.19
CAL-RM-0004	Caldova Daily Care Shampoo	1–4,999: \$5.99	5,000–9,999: \$5.59	10,000+: \$5.19
CAL-RM-0042	Caldova Acetaminophen 500mg	1–4,999: \$6.99	5,000–9,999: \$6.59	10,000+: \$6.19
CAL-RM-0008	Caldova Whitening Toothpaste	1–4,999: \$4.99	5,000–9,999: \$4.59	10,000+: \$4.19
CAL-RM-0036	Caldova Hydrocortisone Cream 1%	1–4,999: \$5.49	5,000–9,999: \$5.09	10,000+: \$4.69
CAL-RM-0046	Caldova Saline Nasal Spray	1–4,999: \$4.99	5,000–9,999: \$4.59	10,000+: \$4.19
CAL-RM-0015	Caldova Vitamin D3 2000 IU	1–4,999: \$7.99	5,000–9,999: \$7.59	10,000+: \$7.19

Schedule C — Authorized Fees

The following are the only ancillary fees Supplier may invoice. No surcharge, handling, expediting, priority, rush or cold-chain fee outside this Schedule is authorized or payable.

Authorized Fee	Basis	Amount (USD)
Qualified Batch Documentation Fee	per shipment	\$250.00
Serialization & Aggregation Fee	per shipment	\$320.00

Schedule D — Quality Agreement Requirements

- The Parties maintain a separate Quality Agreement that governs GMP roles and responsibilities and prevails on quality matters.
- Specifications, sampling plans and test methods are controlled documents referenced in Schedule A.
- Batch release requires a compliant executed batch record, in-specification results and an issued Certificate of Analysis.
- Deviations, out-of-specification results and non-conformances are managed under Section 16 with defined timelines.
- Stability programmes and retention samples are maintained per the Quality Agreement and Applicable Laws.
- Change Control under Section 15 applies to any change affecting identity, quality, purity, potency, safety or regulatory status.
- Records are retained for not less than shelf life plus one (1) year and are available for audit under Section 18.

Schedule E — Delivery Locations and Lead Times

Delivery Location	Incoterm	Standard Lead Time	Delivery Window
Central Plant, Columbus, Ohio, USA	CIP (Incoterms® 2020)	30 calendar days	Agreed monthly schedule

Schedule F — Forecast and Purchase Order Process

- Buyer provides a rolling six (6) month Forecast, updated monthly; the first sixty (60) days are binding.
- Purchase Orders are issued per Section 4 and accepted or rejected within three (3) Business Days.
- Minimum order quantity: 1,000 units per SKU per Purchase Order, unless otherwise agreed in writing.
- Expedite requests are subject to Supplier acceptance and only the authorized fees in Schedule C.

Execution

IN WITNESS WHEREOF, the Parties have executed this Agreement by their duly authorized representatives on the dates and at the places set out below. This Agreement may be executed in counterparts and by electronic signature.

For and on behalf of Caldova Pharmaceuticals, Inc.	For and on behalf of Contoso Pharmaceuticals
Signed: _____	Signed: _____
Designation: VP, Procurement	Designation: Authorized Signatory
Name: (per designation — no individual named)	Name: (per designation — no individual named)
Date of execution: 10 January 2026	Date of execution: 10 January 2026
Place of execution: Columbus, Ohio, USA	Place of execution: Singapore
Witnessed by: _____	Witnessed by: _____